

IN THE CIRCUIT COURT OF _____, MISSOURI
 (County where court is located. City of Saint Louis is considered a county.)

Case Number _____
 (Use number from pending case)

Division Number _____
 (Use number from pending case)

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III)

Petitioner,

-and-

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III)

Respondent.

Parenting Plan

Part A - Custody of the Children

1. Plan Author(s) (Check all applicable boxes)

☐

Both parents wrote this *Parenting Plan*.

☐

Petitioner ☐ Respondent wrote this *Parenting Plan*. (Check Petitioner or Respondent if you choose this option)

☐

The court wrote this *Parenting Plan*.

☐

The Guardian ad Litem wrote this *Parenting Plan*.

☐

Other

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III)

2. Names and Ages of Children

Enter the total number of children to whom this *Parenting Plan* applies: _____.

The names and ages of the children (hereinafter referred to simply as "the children") are as follows:

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

 (First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

3. Duration of Plan

The terms and conditions set forth in this *Parenting Plan* shall remain in full force and effect until the children are emancipated or until this plan is modified by a court of competent jurisdiction.

If you have questions about emancipation or jurisdiction, please consult an attorney or review the definitions on the Representing Yourself website.

Decisions Concerning the Children

4. Types of Decisions

The three types of decisions that parents must make concerning their children are major decisions, daily or everyday decisions, and emergency decisions.

A. Major Decisions

Major decisions are the important decisions about the children. Major decisions are made by **the parent or parents with legal custody**. The following are examples of major decisions:

- The choice or change of schools, including college or special tutoring,
- The choice or change of doctor, surgeon or dentist,
- Church or religious instruction, training or education,
- Selection of child care (daycare, babysitters, afterschool programs),
- Major medical care, surgery, or any medical procedure requiring hospitalization or out-patient surgery,
- Major dental work and orthodontics,
- Psychological or psychiatric treatment or counseling,
- The choice or change of camps or other special or extracurricular activities, including sports,
- The extent of any travel away from home,
- Part or full-time employment of the children,
- Whether the child gets a driver's license, drives or purchases a motor vehicle,
- Birth control and sex education,
- Actual or potential legal action on behalf of the children.

B. Daily or Everyday Decisions

Daily or everyday decisions are routine decisions like minor medical treatment, bedtimes, homework, chores, selection of clothing and normal daily activities.

Daily decisions shall be made by **the parent having actual physical custody at the time** of the decision. The parents shall work together to create consistent routines for the best interests of the child.

C. Emergency Decisions affecting Health and Safety

Emergency decisions are decisions of an urgent nature. They affect the immediate health and safety of the children and have to be made before it is possible to contact the other parent.

The parent who is with the minor child requiring emergency care may make the emergency decision. The parent making the emergency decision shall advise the other parent of the nature and extent of the emergency as soon as possible.

5. Access to Medical, Dental and Educational Records of the Children

Unless otherwise provided in this *Parenting Plan*, both parents are entitled to access records and information pertaining to the children, including, but not limited to, full and complete medical, dental, and educational records subject to Part A, Paragraph 21.

6. Legal Custody (*Check one of the three boxes*)

☐

Joint Legal Custody

"Joint legal custody" means that the parents share the decision-making rights, responsibilities, and authority relating to the health, education and welfare of the child, and, unless allocated, apportioned, or decreed, the parents shall confer with one another in the exercise of decision-making rights, responsibilities, and authority. §452.375.1(2), RSMo.

It is in the best interests of the children that the parents have joint legal custody of the children. Major decisions shall be made by both parents together. If they disagree on a major decision they shall resolve their disagreement through the dispute resolution procedure set forth in Paragraph 9.

☐

Sole Legal Custody (*Check Petitioner or Respondent if you choose this option*)

It is in the best interests of the children that ☐ Petitioner ☐ Respondent has sole legal custody of the children. The parent with sole legal custody shall make all major decisions affecting the children. The parents cannot share joint legal custody because:

Missouri Law requires a statement of the reasons for a request for no shared decision-making. You **must** enter a reason on this line.

☐

Third Party - Sole Legal Custody to Third Party

It is in the best interest of the children that

(First Name) (Middle Name) (Last Name) (Jr./Sr./III)

(hereinafter referred to as "Third Party") has sole legal and sole physical custody of the children. Major decisions affecting the children shall be made by Third Party. Both parents are unfit, unsuitable, or unable to be a custodian of the children or the welfare of the children requires that neither parent have legal custody.

7. Communication between Parents (*Check each box that is appropriate in your case*)

Communication between the parents concerning the children may be by any of the following methods:

☐

In person

☐

Home telephone

☐

Work telephone

☐

Mobile telephone

- ☐ Letter via U.S. Postal Service
- ☐ E-mail
- ☐ Using the following third person. This third person will be:

(First Name) (Middle Name) (Last Name) (Jr./Sr./III)

The children shall not be used as messengers.

8. Issues not to be Discussed in the Presence of the Children

The parents shall not make negative, derogatory or degrading statements about the other parent in front of the children. Both parents shall exercise their best efforts to promote the respect, love and affection of the children toward the other parent. The parents shall avoid discussing parenting issues, financial issues, and other topics related to these proceedings when the children are present.

The parents should prevent other people from making negative, derogatory or degrading statements about the other parent in the presence of the children.

9. Dispute Resolution Procedure

This is the manner in which the parents will resolve disagreements concerning the children. This includes disagreements on the meaning or interpretation of any provision of this plan. The parents shall present their disagreements to a mediator chosen by them for non-binding mediation. In the event that the parents cannot resolve the dispute by mediation, they may submit the issue to the court through appropriate proceedings.

Additional dispute resolution procedures are as follows:

When the Children Will Physically Be with Each Parent

10. Physical Custody (Check one of the four boxes)

☐ **Joint Physical Custody** (Check Petitioner or Respondent if you choose this option)

“Joint physical custody” means an order awarding each of the parents significant but not necessarily equal, periods of time during which a child resides with or is under the care and supervision of each of the parents. Joint physical custody shall be shared by the parents in such a way as to assure the child of frequent, continuing and meaningful contact with both parents. §452.375.1(3), RSMo.

It is in the best interest of the children that both parents have joint physical custody of the children. Use the address of ☐ Petitioner ☐ Respondent as the address of the children for mailing and educational purposes.

☐ **Sole Physical Custody with Visitation to the Other Parent** (Check Petitioner or Respondent if you choose this option)

It is in the best interests of the children that ☐ Petitioner ☐ Respondent has sole physical custody of the children and that the other parent has visitation as set forth herein.

☐ **Sole Physical Custody and Supervised Visitation to the Other Parent** (Check Petitioner or Respondent if you choose this option)

It is in the best interests of the children that ☐ Petitioner ☐ Respondent has sole physical custody of the children and that the other parent has supervised visitation as set forth herein.

Unsupervised visitation with ☐ Petitioner ☐ Respondent would endanger the children's physical health or impair their emotional development because:

Visitation will be supervised by

(First Name) (Middle Name) (Last Name) (Jr./Sr./III)

☐ **Physical Custody to a Third Party**

It is in the best interest of the children that

(First Name) (Middle Name) (Last Name) (Jr./Sr./III)

(hereinafter referred to as "Third Party") has sole physical custody of the children. Both parents are unfit, unsuitable, or unable to be a custodian of the children or the welfare of the children requires that neither parent have physical custody.

11. Residential Schedules

Each exchange should be written on the Weekend and Weekday Exchange Schedule. The parents shall have physical custody of the children as they agree. In the event they do not agree, then the parents shall exchange the children as set forth in the residential schedules.

Each parent shall consider reasonable changes when requested by the other parent or the children. If a significant change is made, either parent may reduce their agreement to writing. All changes are unenforceable unless in writing and signed by both parents.

Weekday and Weekend Exchange Schedule

Enter the parent who is receiving custody and the specified time for each exchange. See previous page of this <i>Parenting Plan</i> for a sample schedule.		
	DAY OF WEEK	EXCHANGES FOR DAY
WEEK ONE	Sunday	
	Monday	
	Tuesday	
	Wednesday	
	Thursday	
	Friday	
	Saturday	
WEEK TWO	Sunday	
	Monday	
	Tuesday	
	Wednesday	
	Thursday	
	Friday	
	Saturday	

See the following page to determine when each week begins.

Determination of Week One and Week Two

Determination of **week one** or **week two** on the Weekday and Weekend Exchange Schedule

For purposes of this *Parenting Plan*, **week one** is defined as a week that has Sunday on one of the following dates:

January	1	2	3	4	5	6	7	15	16	17	18	19	20	21	29	30	31
February	1	2	3	4	12	13	14	15	16	17	18	26	27	28	29		
March	1	2	3	4	12	13	14	15	16	17	18	26	27	28	29	30	31
April	1	9	10	11	12	13	14	15	23	24	25	26	27	28	29		
May	7	8	9	10	11	12	13	21	22	23	24	25	26	27			
June	4	5	6	7	8	9	10	18	19	20	21	22	23	24			
July	2	3	4	5	6	7	8	16	17	18	19	20	21	22	30	31	
August	1	2	3	4	5	13	14	15	16	17	18	19	27	28	29	30	31
September	1	2	10	11	12	13	14	15	16	24	25	26	27	28	29	30	
October	8	9	10	11	12	13	14	22	23	24	25	26	27	28			
November	5	6	7	8	9	10	11	19	20	21	22	23	24	25			
December	3	4	5	6	7	8	9	17	18	19	20	21	22	23	31		

For purposes of this *Parenting Plan*, **week two** is defined as a week that has Sunday on one of the following dates:

January	8	9	10	11	12	13	14	22	23	24	25	26	27	28			
February	5	6	7	8	9	10	11	19	20	21	22	23	24	25			
March	5	6	7	8	9	10	11	19	20	21	22	23	24	25			
April	2	3	4	5	6	7	8	16	17	18	19	20	21	22	30	31	
May	1	2	3	4	5	6	14	15	16	17	18	19	20	28	29	30	31
June	1	2	3	11	12	13	14	15	16	17	25	26	27	28	29	30	
July	1	9	10	11	12	13	14	15	23	24	25	26	27	28	29		
August	6	7	8	9	10	11	12	20	21	22	23	24	25	26			
September	3	4	5	6	7	8	9	17	18	19	20	21	22	23			
October	1	2	3	4	5	6	7	15	16	17	18	19	20	21	29	30	31
November	1	2	3	4	12	13	14	15	16	17	18	26	27	28	29	30	
December	1	2	10	11	12	13	14	15	16	24	25	26	27	28	29	30	

12. Holidays

A different schedule can apply on holidays. The times each parent will have with the children during the holidays are set forth on the Holiday Exchange Schedule.

Include the name of the parent who will have the holiday and the times to exchange the children.

Holiday Exchange Schedule

Holiday	Even Numbered Years	Odd Numbered Years	Physical Custody	
			From	To
	<i>List name of parent</i>	<i>List name of parent</i>	<i>Time - Include a.m. or p.m.</i>	<i>Time - Include a.m. or p.m.</i>
Martin Luther King Day				
President's Day				
Memorial Day				
Independence Day				
Labor Day				
Thanksgiving				
Halloween				
Christmas Eve				
Christmas Day				
Mother's Day				
Father's Day				
Petitioner's Birthday				
Respondent's Birthday				
Child(ren)'s Birthday(s)				
Other holidays, including school holidays, special occasions (specify)				

13. Vacation Schedule (*Check one of the two boxes*)

- ☐ No specific weeks will be set aside for our vacations.
- ☐ Each parent may designate _____ week(s) each year during which they will have exclusive physical custody of the children and the regular schedules do not apply. However, during this period, the Holiday Schedule still applies. Petitioner shall have first choice of weeks in odd-numbered years. Respondent will have first choice of weeks in even-numbered years. The parent with the first choice of weeks must designate the vacation weeks by March 31 of each year. The parent with the second choice of weeks must designate the weeks by April 15 of each year.

Holidays and vacations do not alter the "Week One" or "Week Two" designation, but they do apply ahead of the regular schedule. If the holiday schedule conflicts with any other schedule, the holiday schedule takes precedence.

Other Provisions Concerning the Children

14. Location of Exchanges (*Check one of the four boxes*)

If a specific location for an exchange is not stated on the schedule, then the exchange shall occur at the following location:

- ☐ All exchanges shall occur at the children's school or child care provider when school or child care is in session. If, or when, school or child care is not in session, all exchanges shall occur at the locations as follows:
- ☐ All exchanges shall occur at ☐ Petitioner's ☐ Respondent's residence. (*Check Petitioner or Respondent if you choose this option*)
- ☐ The parent receiving custody of the children shall pick up the children at the other parent's residence.
- ☐ Exchanges shall occur at the locations as follows:

15. Transportation

Each parent will pay the expenses associated with his or her own transportation to and from the exchange location unless otherwise indicated in this *Parenting Plan*.

16. Notification of Change from Residential Schedule

In the event either parent cannot exercise the scheduled time with the children, he or she should tell the other parent as soon as possible, but not later than 24 hours before the start of the scheduled time with the children. If a parent anticipates that he or she may have to cancel at the last minute, he or she should advise the other parent of the possible last minute conflict. If a parent fails to notify the other as set forth above, he or she shall be responsible for the reasonable costs incurred by the other parent.

17. Telephone Contact with Children (*Check one of the two boxes*)

Each parent may contact the children in a reasonable manner when the children are with the other parent.

☐ Neither parent may contact the children at the other parent's residence earlier than _____ a.m. or later than _____ p.m.

☐ There are no restrictions on the time to contact the children.

Each parent shall provide the other parent with the telephone number at which the children may be contacted. Neither parent shall configure their telephone system in such a manner as to "block" or prevent the other parent from calling.

When a parent travels out of town with the children for at least 24 hours, he or she must notify the other parent of the children's destination. He or she must also provide a telephone number where the children can be reached.

18. Children's Activities

The parent who has the children at the time of the activity is responsible for getting the children to their school or extracurricular activities. Each parent shall not schedule activities that occur primarily when the children are with the other parent without the other parent's consent.

19. Relocation

§452.377, RSMo states, "Absent exigent circumstances as determined by a court with jurisdiction, **you as a party to this action are ordered to notify, in writing by certified mail, return receipt requested, and at least sixty days prior to the proposed relocation**, each party to this action of any proposed relocation of the principal residence of the child, including the following information:

- (1) The intended new residence, including the specific address and mailing address, if known, and if not known, the city;
- (2) The home telephone number of the new residence, if known;
- (3) The date of the intended move or proposed relocation;
- (4) A brief statement of the specific reasons for the proposed relocation of the child; and
- (5) A proposal for a revised schedule of custody or visitation with the child.
- (6) The other party's right, if that party is a parent, to file a motion, pursuant to §452.377, RSMo, seeking an order to prevent the relocation and an accompanying affidavit setting forth the specific good-faith factual basis for opposing the relocation within thirty days of receipt of the notice.

Your obligation to provide this information to each party continues as long as you or any other party by virtue of this order is entitled to custody of a child covered by this order. Your failure to obey the order of this court regarding the proposed relocation may result in further litigation to enforce such order, including contempt of court. In addition, your failure to notify a party of a relocation of the child may be considered in a proceeding to modify custody or visitation with the child. Reasonable costs and attorney fees may be assessed against you if you fail to give the required notice."

The residence of the children may be relocated sixty (60) days after providing notice unless a parent files a motion seeking an order to prevent the relocation within thirty (30) days after receipt of notice. Such motion shall be accompanied by an affidavit setting forth the specific factual bases supporting a prohibition of the relocation.

20. The courts must consider any pattern of domestic violence when it awards custody of the children. *(Check one of the three boxes.)*

Domestic violence is abuse committed against another family or household member. Missouri law requires the court consider issues related to domestic violence before making decisions related to the children.

- ☐ There has been no pattern of domestic violence between the parents.
- ☐ There has been a pattern of domestic violence between the parents, with
- ☐ Petitioner ☐ Respondent committing violent acts against the other parent or another family or household member. *(Check Petitioner or Respondent if you choose this option)*
- ☐ There has been a pattern of domestic violence between the parents, with both parents committing violent acts against the other parent or another family or household member.

21. If the court restricts a parent's visitation or custody with a child due to domestic violence, the court may also restrict that parent's access to address information within a child's educational records. (Check one of the three boxes)

- ☐ There has been no domestic violence by either parent.
- ☐ There has been domestic violence committed by ☐ Petitioner ☐ Respondent against the other parent or one of the children. The educational records of the children **shall not** include the address of the other parent or the children. (Check *Petitioner* or *Respondent* if you choose this option)
- ☐ There has been domestic violence committed by ☐ Petitioner ☐ Respondent against the other parent or one of the children. However, the educational records of the children may include the address of the other parent or the children. (Check *Petitioner* or *Respondent* if you choose this option)

- ▶ _____ (Petitioner - Sign above) _____ (Petitioner - Print your name above)
- ▶ _____ (Attorney for Petitioner - Sign above) _____ (Attorney for Petitioner - Print your name above)
- ▶ _____ (Respondent - Sign above) _____ (Respondent - Print your name above)
- ▶ _____ (Attorney for Respondent - Sign above) _____ (Attorney for Respondent - Print your name above)
- ▶ _____ (Guardian ad Litem - Sign above) _____ (Guardian ad Litem - Print your name above)

(If heard by a Family Court Judge)

(Judge)

(Date)

(If heard by a Family Court Commissioner)

Findings and Recommendations of Commissioner:

(Commissioner)

(Date)

All orders and these findings and recommendations of the Commissioner are confirmed and adopted as the judgment of the court.

(Judge)

(Date)

Exhibit _____

IN THE CIRCUIT COURT OF _____, MISSOURI
(County where court is located. City of Saint Louis is considered a county.)

Case Number _____
(Use number from pending case)

Division Number _____
(Use number from pending case)

(First Name) (Middle Name) (Last Name) (Jr./Sr./III)
Petitioner,
-and-

(First Name) (Middle Name) (Last Name) (Jr./Sr./III)
Respondent.

Parenting Plan

Part B - Support of the Children

1. Plan Author(s) (Check all applicable boxes)

- ☐ Both parents wrote this *Parenting Plan*.
- ☐ Petitioner ☐ Respondent wrote this *Parenting Plan*. (Check Petitioner or Respondent if you choose this option)
- ☐ The court wrote this *Parenting Plan*.
- ☐ The Guardian ad Litem wrote this *Parenting Plan*.
- ☐ Other _____
(First Name) (Middle Name) (Last Name) (Jr./Sr./III)

2. Names and Ages of Children

Enter the total number of children to whom this *Parenting Plan* applies: _____.

The names and ages of the children (hereinafter referred to simply as "the children") are as follows:

(First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

(First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

(First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

(First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

(First Name) (Middle Name) (Last Name) (Jr./Sr./III) (Child's Age)

Child Support Calculations

Child Support

Child support is an amount of money paid by one parent to the other parent for the support of the children. In addition to a regular monthly child support payment, other expenses of the children may be divided between the parents as child support.

Form 14

The Form 14 is a form used to calculate a presumed amount of child support. The Form 14 is part of this *Parenting Plan* and is found on Part B, Page 8. The court will usually follow the Form 14, however, if the court finds that the child support calculated pursuant to the Form 14 is unjust or inappropriate, it will set child support at a different amount.

Parents must also determine the division and amount of other expenses of the children such as medical and dental insurance, uncovered medical and dental expenses, childcare, and other extraordinary expenses. These expenses are part of the child support obligations of each parent.

Parents may agree on an amount of child support and the division of expenses. The court does not have to accept this agreement and can set different support amounts. Even if the parents have agreed on an amount of child support, **they must still calculate a Form 14 for the court.**

Missouri law further provides that "An award of joint physical custody does not preclude an award of child support pursuant to Section 452.340 and applicable supreme court rules in determining an amount reasonable or necessary for the support of the child." §452.375.12, RSMo. Child support may be appropriate even if both parties have custody of the children an equal amount of time.

3. Parent to Pay Child Support (*Check one of the two boxes*)

One parent must be called the "parent paying support" and the other parent must be called the "parent receiving support." This is true even if no child support is going to be paid.

☐ Petitioner ☐ Respondent will pay regular monthly child support to
☐ Petitioner ☐ Respondent. (*Check Petitioner or Respondent if you choose this option*)

☐ No regular monthly child support will be paid by either parent. ☐ Petitioner ☐ Respondent will be referred to as "parent paying support" for purposes of the Form 14 calculation only. The other parent will be referred to as "parent receiving support." (*Check Petitioner or Respondent if you choose this option*)

Medical and Dental Insurance for the Children

Cost of Medical or Dental Insurance for the Children

The cost of medical or dental insurance for the children is the monthly amount of any premium paid. If the parent's employer deducts the amount of premium from his or her pay, then the cost of medical or dental insurance includes the amount of the premium paid. It does not include the cost of medical or dental insurance for the parent, the parent's spouse, or other children that are not covered by this *Parenting Plan*. The cost of medical or dental insurance for the children is included on Line 6c of the Form 14.

The Form 14 states: "If the amount of the actual health insurance costs for the children who are the subject of this proceeding is not available or cannot be verified, the amount of the health insurance costs attributable to the children who are the subject of this proceeding shall be calculated by dividing the total monthly costs for the policy of health insurance by the total number of persons for whom the costs are paid or to be paid and then multiplying the resulting figure by the number of children insured under the policy who are the subject of this proceeding."

4. Parent Responsible for Medical Insurance (*Check one of the three boxes*)

☐ Neither parent is required to maintain **medical** insurance for the benefit of the children. A health benefit plan is not available at reasonable cost through either parent's employer or union. If the parents receive child support services through the Family Support Division, the parents shall notify the Family Support Division of any changes in employment, whether health insurance is available through their employer, other group plan or the Affordable Care Act, provide the name of the insurance provider when coverage is available, and any other changes in access to health insurance coverage.

☐ Petitioner ☐ Respondent shall maintain and pay the cost of **medical** insurance for the benefit of the children.

5. Parent Responsible for Dental Insurance (*Check one of the three boxes*)

☐ Neither parent is required to maintain **dental** insurance for the benefit of the children. A health benefit plan is not available at reasonable cost through either parent's employer or union. If the parents receive child support services through the Family Support Division, the parents shall notify the Family Support Division of any changes in employment, whether dental insurance is available through their employer, other group plan or the Affordable Care Act, provide the name of the insurance provider when coverage is available, and any other changes in access to health insurance coverage.

☐ Petitioner ☐ Respondent shall maintain and pay the cost of **dental** insurance for the benefit of the children.

6. Medical and Dental Insurance for the Children

You must enter an amount on both lines, even if you enter "0." These amounts should also be entered on line 6c of the Form 14.

The total cost of medical and/or dental insurance paid by Petitioner for the minor children is \$ _____ per month.

The total cost of medical and/or dental insurance paid by Respondent for the minor children is \$ _____ per month.

In the event either parent is required to maintain medical or dental insurance, the parent providing the health benefit plan shall provide to the other parent an insurance identification card.

If support rights have been assigned to the state of Missouri or the Family Support Division is providing support enforcement services to either parent, the parent paying support shall notify the Family Support Division regarding the availability of medical insurance coverage through an employer or a group plan, provide the name of the insurance provider when coverage is available, and inform the division of any change in access to such insurance coverage.

Health Expenses Not Covered by Insurance

7. Medical, Dental, Vision, or Psychological Expenses not Covered by Insurance

Any parent who receives a bill for medical, dental, vision or psychological expenses of the children shall submit a copy of that bill to the other parent within 30 days of the receipt of the bill.

(Check one of the three boxes)

☐ The parent ☐ receiving support ☐ paying support will pay all reasonable and necessary medical and dental expenses of the children not covered by insurance. Other parent will reimburse the parent paying expenses for _____ percent of all such expenses that are actually paid by the parent paying expenses and are in excess of \$250 per year per child. This does not include the uninsured extraordinary costs set forth in Paragraph 8 below. §454.603.5(2), RSMo. (Check parent "receiving support" or parent "paying support" if you choose this option)

Medical and dental expenses are defined by §213(d)(1)(A) of the Internal Revenue Code.

§454.633.3, RSMo provides that if you have checked this first box in Paragraph 7 and you have not provided a percentage, then each parent will be responsible for one-half of all reasonable and necessary medical or dental expenses of the children not covered by insurance except as set forth in Paragraph 8 below.

☐ The parent ☐ receiving support ☐ paying support will be responsible for all reasonable and necessary medical or dental expenses of the children not covered by insurance. The other parent does not have the financial resources to contribute to the payment of medical or dental expenses of the children not covered by insurance. This does not apply to the medical costs listed in Paragraph 8 below. §454.603.5(2), RSMo. (Check parent "receiving support" or parent "paying support" if you choose this option)

☐ All reasonable and necessary medical or dental expenses of the children are covered by insurance. §454.603.5(1), RSMo.

8. Payment of Uninsured Extraordinary Medical Costs

Extraordinary medical costs are predictable and recurring, such as expenses for dental treatment, orthodontic treatment, asthma treatment and physical therapy. These expenses **may** be included in the Form 14 calculation.

If no extraordinary medical costs are to be included on the Form 14, you may leave this information blank.

Uncovered Extraordinary Medical Costs to be Paid by Parent Paying Support included on the Form 14	Amount of Expense
_____	\$ _____ per month
_____	\$ _____ per month
_____	\$ _____ per month

The total cost of these uncovered extraordinary medical costs of the children is \$ _____ per month.

You must include this amount on the Form 14 - Line 6d

Uncovered Extraordinary Medical Costs to be Paid by Parent receiving Support included on the Form 14	Amount of Expense
_____	\$ _____ per month
_____	\$ _____ per month
_____	\$ _____ per month

The total cost of these uncovered extraordinary medical costs of the children is \$ _____ per month.

You must include this amount on the Form 14 - Line 6d

Child Care Expenses

Child care expenses related to employment are expenses incurred by a parent during periods of time while the parent is working and the children are in his or her physical custody.

9. Work-Related Child Care Costs

The work-related child care expenses of the parent receiving support are \$ _____ per month.

The work-related child care expenses of the parent paying support are \$ _____ per month.

(Check one of the four boxes)

- ☐ There are no work-related child care costs incurred by the parents.
- ☐ The work-related child care costs will be included in the child support calculation on the Form 14.

The amount of work-related child care costs for the parent receiving support must be placed on Line 6a(1) of the Form 14.

The amount of work-related child care costs for the parent paying support must be placed on Line 6b of the Form 14.

- ☐ Each parent will pay their own reasonable work-related child care expenses related to his or her employment. The cost of reasonable work-related child care expenses has **not** been included in the child support calculation on the Form 14. Neither parent will reimburse the other parent for any portion of the child care expenses.
- ☐ The parent paying support shall reimburse the parent receiving support for _____ percent of all reasonable work-related child care expenses actually paid by the parent receiving support. The work related child care expenses have **not** been included on the Form 14. To be eligible for reimbursement of work-related child care expenses, the parent receiving support must appropriately report expenses to the Internal Revenue Service.

10. Child Care Expenses Unrelated to Employment

Incidental child care costs not related to employment are to be paid by the parent with physical custody at the time the child care costs are incurred.

Extraordinary Child-Rearing Costs of the Children Including College Costs

Extraordinary Child-Rearing Costs

Extraordinary child-rearing costs may include, but are not limited to, the following expenses:

- Educational expenses for college or post-secondary education,
- Special, private or parochial elementary and secondary schooling expenses,
- Tutoring sessions,
- Camps,
- Lessons,
- Athletic activities,
- Travel and other activities intended to enhance the athletic, social or cultural development of a child.

11. Educational Expenses for College or Post-Secondary Education

As used herein, educational expenses for college or post-secondary education (also referred to as college expenses) include tuition, fees, books, dormitory cost for room and board. It does not include room and board while residing with either parent. This term shall be the actual cost to the child. In the event the child receives a scholarship or other aid which reduces the tuition, fees, books, or dormitory costs for room and board, then the educational expenses for college or post-secondary education does not include the amount of such scholarship or aid. For this purpose, loans to the student shall not be considered 'scholarship or other aid'.

The maximum educational expenses for college or post-secondary education, as defined herein, shall not exceed the cost for tuition, fees, books, and dormitory costs for room and board at the University of Missouri at Columbia, regardless of what institution the child attends.

Responsibility for educational expenses for college or post-secondary education shall not exceed more than eight semesters at a college or university.

Continued Eligibility for Child Support when Child is in College

§452.340.5, RSMo provides that "[t]o remain eligible for such continued parental support, at the beginning of each semester **the child** shall submit to each parent a transcript or similar official document provided by the institution of vocational or higher education which includes the courses the child is enrolled in and has completed for each term, the grades and credits received for each such course, and an official document from the institution listing the courses which the child is enrolled in for the upcoming term and the number of credits for each such course."

The child must carry a minimum number of credit hours each semester.

12. Extraordinary Child-Rearing Costs

Extraordinary child-rearing costs incurred by the parents may be included on the Form 14, or the parents may agree to divide these costs on some percentage basis. The extraordinary child-rearing costs are to be paid as set forth in the next paragraph.

Part B, Page 7, Paragraph 13, of this *Parenting Plan*

13. Payment of Extraordinary Child-Rearing Costs of the Children

a. Extraordinary Child-Rearing Costs **included** on the Form 14

Extraordinary Child-Rearing Costs Paid by Parent Paying Support included on the Form 14	Amount of Expense
_____	\$ _____ per month
_____	\$ _____ per month
_____	\$ _____ per month

The total cost of these extraordinary child-rearing costs of the children is \$ _____ per month.

You must include this amount on the Form 14 - Line 6e

Extraordinary Child-Rearing Costs Paid by Parent Receiving Support included on the Form 14	Amount of Expense
_____	\$ _____ per month
_____	\$ _____ per month
_____	\$ _____ per month

The total cost of these extraordinary child-rearing costs of the children is \$ _____ per month.

You must include this amount on the Form 14 - Line 6e

b. Extraordinary Child-Rearing Costs **not included** on the Form 14

Extraordinary Child-Rearing Costs Paid by Parent Paying Support not included on the Form 14	Percentage to be Paid by Parent Receiving Support
_____	_____ %
_____	_____ %
_____	_____ %

Parent receiving support will reimburse the other parent the above percentage amount of each of these extraordinary child-rearing costs of the children so long as those expenses are actually paid by the other parent.

Extraordinary Child-Rearing Costs Paid by Parent Receiving Support not included on the Form 14	Percentage to be Paid by Parent Paying Support
_____	_____ %
_____	_____ %
_____	_____ %

Parent paying support will reimburse the other parent the above percentage amount of each of these extraordinary child-rearing costs of the children so long as those expenses are actually paid by the other parent.

Amount of Child Support

14. Presumed Monthly Amount of Child Support (*Complete all applicable amounts*)

The court-ordered support amount is set forth in Part B, Paragraph 16.

The presumed child support amount calculated pursuant to Form 14 for six children is: \$ _____.

The presumed child support amount calculated pursuant to Form 14 for five children is: \$ _____.

The presumed child support amount calculated pursuant to Form 14 for four children is: \$ _____.

The presumed child support amount calculated pursuant to Form 14 for three children is: \$ _____.

The presumed child support amount calculated pursuant to Form 14 for two children is: \$ _____.

The presumed child support amount calculated pursuant to Form 14 for one child is: \$ _____.

15. Should the court order the presumed monthly amount of child support? (*Check one of the two boxes*)

Court-ordered child support will be set at the time of the court proceeding. The court is not bound by the suggestions of the parents and may set an amount greater or less than the suggested amounts of court-ordered child support set forth in this *Parenting Plan*. If the court approves and adopts this plan, then the support provisions herein will become the order of the court.

☐ Yes. The court-ordered child support is the same as the presumed child support amount. The presumed child support amount as calculated herein is not rebutted as being unjust and inappropriate.

☐ No. The court-ordered child support is different from the presumed child support amount in the Form 14. After consideration of all statutory and other relevant factors pursuant to §452.340.8, RSMo, the presumed child support amount is rebutted as unjust and inappropriate due to _____.

16. Court-Ordered Child Support (*Check all applicable boxes*)

This is the amount of child support that actually will be paid by the parent paying support.

You should check each box that applies. For example, if this *Parenting Plan* pertains to three children, then you should check the boxes for three children, two children and one child. You should also enter an amount of support for three children, two children, and one child, respectively. You must attach a Form 14 for each level. For example, if you have three children, then you must attach one Form 14 for three children, one Form 14 for two children, and one Form 14 for one child.

If you check one of the boxes below, you must check all the boxes below it. Once again, if you only check the box for two children and do not check the box for one child, then no support is owed when only one child remains.

☐ Six or More Children - The parent paying support is to pay to the parent receiving support \$ _____ per month when the parent receiving support is entitled to support for six or more children covered by this *Parenting Plan*.

- ☐ Five Children - The parent paying support is to pay to the parent receiving support \$ _____ per month when the parent receiving support is entitled to support for five children covered by this *Parenting Plan*.
- ☐ Four Children - The parent paying support is to pay to the parent receiving support \$ _____ per month when the parent receiving support is entitled to support for four children covered by this *Parenting Plan*.
- ☐ Three Children - The parent paying support is to pay to the parent receiving support \$ _____ per month when the parent receiving support is entitled to support for three children covered by this *Parenting Plan*.
- ☐ Two Children - The parent paying support is to pay to the parent receiving support \$ _____ per month when the parent receiving support is entitled to support for two children covered by this *Parenting Plan*.
- ☐ One Child - The parent paying support is to pay to the parent receiving support \$ _____ per month when the parent receiving support is entitled to support for one child covered by this *Parenting Plan*.

17. Starting Date for Child Support (Check one of the two boxes if either parent is paying child support in Part B, Paragraph 16)

Notification by the Parent Receiving Support when Child Support Changes

Missouri law provides that “[u]nless otherwise agreed in writing or expressly provided in the judgment, provisions for the support of the child are terminated by emancipation of the child. The parent entitled to receive child support shall have the duty to notify the parent obligated to pay support of the child’s emancipation and failing to do so, the parent entitled to receive child support shall be liable to the parent obligated to pay support for child support paid following emancipation of a minor child, plus interest.” §452.370.4, RSMo.

- ☐ The first child support payment is due on the date of the entry of the judgment.
- ☐ The first child support payment is due on _____ .

Income Tax Considerations

18. Income Tax Dependents

The Form 14 calculation assumes that the parent receiving support will claim the children as dependents. If the parent paying support is entitled to claim one or more of the children, then the Form 14 guidelines are unjust and inappropriate and the second box in Paragraph 15 should be checked.

The parents shall be entitled to claim the minor children as dependents for income tax purposes as follows:

Name of Child	In odd numbered tax years, this parent will claim this child as a dependent	In even numbered tax years, this parent will claim this child as a dependent

Parent paying support must be current with all support obligations as of December 31 of the tax year in which the child is to be claimed. Each parent will sign any appropriate documents to allow the other parent to make such claims.

Payment of Child Support and Income Withholding

Income Withholding

Income Withholding means that the child support is taken directly out of the paycheck of the parent paying support. These payments could be taken out of money from an employer, or other types of payments like Social Security disability benefits, unemployment compensation benefits or military retirement benefits. The amount withheld is sent to the Family Support Payment Center. The Family Support Payment Center will then forward the support to the parent receiving support. Child support withheld under an income withholding order cannot be sent directly to the parent receiving support. A record will be kept of all payments. If the parent paying support is currently unemployed or self-employed, income withholding may still be ordered, but it will not take effect until the parent paying support begins receiving regular income.

If income withholding is not ordered, then the child support may be paid directly to the parent receiving support. The parent paying support may also voluntarily send payments to the Family Support Payment Center. If the child support is not paid to the Family Support Payment Center, it is extremely important that each parent keep accurate records of the amount of child support paid. This means that the parent paying support may not receive credit for his or her payments if he or she does not have receipts or cancelled checks. Because of this, it is proper to request a receipt from the parent receiving support.

If parents receive Temporary Assistance For Needy Families (TANF) benefits through the Missouri Family Support Division or receive child support enforcement services through the Missouri Family Support Division, child support **must** be paid through the Family Support Payment Center.

Even if the court does not order income withholding right now, the Family Support Division may issue an income withholding order at a later time if the parent paying support fails to make timely child support payments as ordered.

19. Method of Payment of Child Support (*Check one of the five boxes if either parent is paying child support in Part B, Paragraph 16*)

- ☐ Child support shall be paid through income withholding. An application for income withholding for support shall be prepared by the parent receiving support and issued by the circuit clerk upon the effective date of this judgment. Child support is ordered to be paid to the Family Support Payment Center, PO Box 109001, Jefferson City, Missouri, 65110-9001.
- ☐ Income withholding will not issue because a written agreement has been reached between the parents that provides for an alternative arrangement. Child support shall be paid directly to the Family Support Payment Center, PO Box 109001, Jefferson City, Missouri, 65110-9001.
- ☐ Income withholding will not issue because there is good cause not to require immediate income withholding for the reason that implementation of an immediate withholding would not be in the best interest of the child and the parent paying support has made timely payments of all previously ordered support. Child support shall be paid directly to the Family Support Payment Center, PO Box 109001, Jefferson City, Missouri, 65110-9001.
- ☐ Income Withholding will not issue because a written agreement has been reached between the parents that provides for an alternative arrangement. Child support shall be paid directly to the parent receiving support.
- ☐ Income Withholding will not issue because there is good cause not to require immediate income withholding for the reason that implementation of an immediate withholding would not be in the best interest of the child and the parent paying support has made timely payments of all previously ordered support. Child support shall be paid directly to the parent receiving support.

20. Additional Provisions Pertaining to Support of the Children:

- ▶ _____ (Petitioner - Sign above) _____ (Petitioner - Print your name above)
- ▶ _____ (Attorney for Petitioner - Sign above) _____ (Attorney for Petitioner - Print your name above)
- ▶ _____ (Respondent - Sign above) _____ (Respondent - Print your name above)
- ▶ _____ (Attorney for Respondent - Sign above) _____ (Attorney for Respondent - Print your name above)
- ▶ _____ (Guardian ad Litem - Sign above) _____ (Guardian ad Litem - Print your name above)

(If heard by a Family Court Judge)

(Judge)

(Date)

(If heard by a Family Court Commissioner)

Findings and Recommendations of Commissioner:

(Commissioner)

(Date)

All orders and these findings and recommendations of the Commissioner are confirmed and adopted as the judgment of the court.

(Judge)

(Date)